

Amendment No. 1 to HB2356

Howell
Signature of Sponsor

AMEND Senate Bill No. 2258*

House Bill No. 2356

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Tennessee Code Annotated, Section 55-8-151(c), is amended by deleting subdivision (2) and substituting:

(2)

(A) An LEA that installs cameras on the exterior of school buses in accordance with subdivision (c)(1) shall, at a minimum:

(i) Enter into a memorandum of understanding (MOU) with local law enforcement that includes, but is not limited to, the review of evidence from a camera and overall enforcement; or

(ii) Authorize school safety personnel to review evidence from a camera to determine whether a violation of subdivision (a)(1) has occurred. School safety personnel authorized to review evidence from a camera pursuant to this subdivision (c)(2)(A)(ii) may issue notices of violation and citations in accordance with this subsection (c).

(B) An LEA that installs cameras on the exterior of school buses in accordance with subdivision (c)(1) may:

(i) Enter into an MOU with local law enforcement under subdivision (c)(2)(A)(i) that only authorizes POST-certified or state-commissioned law enforcement officers, including school resource officers, as defined in § 49-6-4202, to review evidence from a camera to determine whether a violation of subdivision (a)(1) has occurred;

(ii) Authorize school safety personnel to review evidence from a camera to determine whether a violation of subdivision (a)(1) has occurred for the purpose of issuing notices of violation or citations for such violations in accordance with this subsection (c); or

(iii)

(a)

(1) Enter into an MOU with local law enforcement as described in subdivision (c)(2)(A)(i); and

(2) Authorize school safety personnel to review evidence from a camera and issue notices of violation or citations as described in subdivision (c)(2)(A)(ii).

(b) An LEA that authorizes school safety personnel to review evidence from a camera and issue notices of violation or citations pursuant to this subsection (c) is not restricted or prohibited from entering into or maintaining an MOU with a law enforcement agency under subdivision (c)(2)(A)(i). Both review and enforcement processes may be used concurrently.

SECTION 2. Tennessee Code Annotated, Section 55-8-151(c)(12), is amended by adding the following as a new, appropriately designated subdivision:

() "School safety personnel" means a school safety officer; school resource officer, as defined in § 49-6-4202; or any other individual employed or contracted by an LEA whose duties include student safety or school security.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.